

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 1, Honorable Socrates Peter Manoukian, Presiding

Courtroom Clerk: Hien-Trang Tran-Thien

191 North First Street, San Jose, CA 95113

Telephone: 408.882.2320

Department21@scscourt.org

"Every case is important" "No case is more important than any other." –
United States District Judge Edward Weinfeld (<https://www.nytimes.com/1988/01/18/obituaries/judge-edward-weinfeld-86-dies-on-us-bench-nearly-4-decades.html>)

"The Opposing Counsel on the Second-Biggest Case of Your Life Will Be the Trial Judge on the
Biggest Case of Your Life." – Common Wisdom.

As Shakespeare observed, it is not uncommon for legal adversaries to "strive mightily, but eat and
drink as friends." (Shakespeare, *The Taming of the Shrew*, act I, scene ii.)" (*Gregori v. Bank of
America* (1989) 207 Cal.App.3d 291, 309.)

Counsel is duty-bound to know the rules of civil procedure. (See *Ten Eyck v. Industrial Forklifts Co.*
(1989) 216 Cal.App.3d 540, 545.) The rules of civil procedure must apply equally to parties represented
by counsel and those who forgo attorney representation. (*McClain v. Kissler* (2019) 39 Cal.App.5th 399.)

By Standing Order of this Court, all parties appearing in this Court are expected to comply with the
Code of Professionalism adopted by the Santa Clara County Bar Association:

<https://www.sccba.com/code-of-professional-conduct/>

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DATE: Tuesday, 30 June 2026

TIME: 9:00 A.M.

**Please note that Judge Socrates Peter Manoukian will be hearing the
Department 1 calendar on 30 June 2026 and on 02 July 2026 in place
of Judge Eunice Lee.**

TO ALL LAWYERS APPEARING IN THIS COURT: Please be on the lookout for announcements concerning "Civil Trials and Civil Motion Practice: Best Practices in Santa Clara County Superior Court." The program is tentatively set for 20 June 2024 at 12:00 PM on the Department 6 Teams Link. The program is available to all lawyers whether or not they are members of Santa Clara County Bar Association.

This Court expects all counsel and litigants to comply with the Tentative Rulings Procedures that are outlined in Local Civil Rule 8(E) and **California Rules of Court**, rule 3.1308. If the Court has not directed argument, oral argument must be permitted only if a party notifies all other parties and the Court at (408) 808-6856 before 4:00 p.m. on the court day before the hearing of the party's intention to appear. A party must notify all other parties by

telephone or in person. A failure to timely notify this Court and/or the opposing parties may result in the tentative ruling being the final order in the matter.

You may use these links for Case Management Conferences and Trial Setting Conferences without Court permission. Informal Discovery Conferences and appearances on Ex Parte applications will be set on Order by the Court.

By appearing in this Department, whether in-person or by remote video platform, you represent that you have read the protocols of this Department, that you understand them, and that you will comply with them.

APPEARANCES.

Appearances are usually held on the Zoom virtual platform. However, we are currently allowing in-court appearances as well. If you do intend to appear in person, please advise us when you call to contest the tentative ruling so we can give you current instructions as to how to enter the building. If the doors to the Old Courthouse are locked, please see the deputies at the metal detector next door at 191 North First Street.

Whether appearing in person or on a virtual platform, the usual custom and practices of decorum and attire apply. (See *Jensen v. Superior Court (San Diego)* (1984) 154 Cal.App.3d 533.). Counsel should use good quality equipment and with sufficient bandwidth. Cellphones are very low quality in using a virtual platform. Please use the video function when accessing the Zoom platform. The Court expects to see the faces of the parties appearing on a virtual platform as opposed to listening to a disembodied voice.

For new Rules of Court concerning remote hearings and appearances, please review California **Rules of Court**, rule 3.672.

“A person's name is to him or her the sweetest and most important sound in any language.”—Dale Carnegie. All Courts of California celebrate the diversity of the attorneys and the litigants who appear in our Courts. Do not hesitate to correct the Court or Court Staff concerning the pronunciation of any name or how anyone prefers to be addressed. As this Court is fond of saying, “with a name like mine, I try to be careful how I pronounce the names of others.” Please inform the Court how you, or if your client is with you, you and your client prefer to be introduced. The Court encourages the use of diacritical marks, multiple surnames and the like for the names of attorneys, litigants and in court papers. You might also try www.pronouncenames.com but that site mispronounces my name.

Please notify this Court immediately if the matter will not be heard on the scheduled date. **California Rules of Court**, rule 3.1304(b). If a party fails to appear at a law and motion hearing without having given notice, this Court may take the matter off calendar, to be reset only upon motion, or may rule on the matter. **California Rules of Court**, rule 3.1304(d). A party may give notice that he or she will not appear at a law and motion hearing and submit the matter without an appearance unless this Court orders otherwise. This Court will rule on the motion as if the party had appeared. California Rules of Court, rule 3.1304(c). Any uncontested matter or matters to which stipulations have been reached can be processed through the Clerk in the usual manner. Please include a proposed order.

All proposed orders and papers should be submitted to this Department's e-filing queue. Do not send documents to the Department email unless directed to do so.

While the Court will still allow physical appearances, all litigants are encouraged to use the Zoom platform for Law & Motion appearances and Case Management Conferences. Use of other virtual platform devices will make it difficult for all parties fully to participate in the hearings. Please note the requirement of entering a password

(highlighted above.) As for personal appearances, protocols concerning social distancing and facial coverings in compliance with the directives of the Public Health Officer will be enforced. Currently, facemasks are not required in all courthouses. If you appear in person and do wear a mask, it will be helpful if you wear a disposable paper mask while using the courtroom microphones so that your voice will not be muffled.

Individuals who wish to access the Courthouse are advised to bring a plastic bag within which to place any personal items that are to go through the metal detector located at the doorway to the courthouse.

Sign-ins will begin at about 8:30 AM. Court staff will assist you when you sign in. If you are using the Zoom virtual platform, it will be helpful if you “rename” yourself as follows: in the upper right corner of the screen with your name you will see a blue box with three horizontal dots. Click on that and then click on the “rename” feature. You may type your name as: **Line #/name/party**. If you are a member of the public who wishes to view the Zoom session and remain anonymous, you may simply sign in as “Public.”

CIVILITY.

In the 50 years that this Judge has been involved with the legal profession, the discussion of the decline in civility in the legal profession has always been one of the top topics of continuing education classes.

This Court is aware of a study being undertaken led by Justice Brian Currey and involving various lawyer groups to redefine rules of civility. This Judge has told Justice Currey that the lack of civility is due more to the inability or unwillingness of judicial officers to enforce the existing rules.

The parties are forewarned that this Court may consider the imposition of sanctions against the party or attorney who engages in disruptive and discourteous behavior during the pendency of this litigation.

COURT REPORTERS.

This session will not be recorded. No electronic recordings, video, still photography or audio capture of this live stream is allowed without the expressed, written permission of the Superior Court of California, County of Santa Clara. State and Local Court rules prohibit photographing or recording of court proceedings whether in the courtroom or while listening on the Public Access Line or other virtual platform, without a Court Order. See Local General Rule 2(A) and 2(B); **California Rules of Court**, rule 1.150.

This Court no longer provides for Court Reporters in civil actions except in limited circumstances. If you wish to arrange for a court reporter, please use Local Form #CV-5100. All reporters are encouraged to work from a remote location. Please inform this Court if any reporter wishes to work in the courtroom. This Court will approve all requests to bring a court reporter. Counsel should meet and confer on the use of a court reporter so that only one reporter appears and serves as the official reporter for that hearing.

PROTOCOLS DURING THE HEARINGS.

During the calling of any hearing, this Court has found that the Zoom video platform works very well. But whether using Zoom or any telephone, it is preferable to use a landline if possible. IT IS ABSOLUTELY NECESSARY FOR ALL INDIVIDUALS TO SPEAK SLOWLY. Plaintiff should speak first, followed by any other person. All persons should spell their names for the benefit of Court Staff. Please do not use any hands-free mode if at all possible. Headsets or earbuds of good quality will be of great assistance to minimize feedback and distortion.

The Court will prepare the Final Order unless stated otherwise below or at the hearing. Counsel are to comply with **California Rules of Court**, rule 3.1312.

TROUBLESHOOTING TENTATIVE RULINGS.

To access a tentative ruling, move your cursor over the line number, hold down the “Control” key and click. If you see last week’s tentative rulings, you have checked prior to the posting of the current week’s tentative rulings. You will need to either “REFRESH” or “QUIT” your browser and reopen it. Another suggestion is to “clean the cache” of your browser. Finally, you may have to switch browsers. If you fail to do any of these, your browser may pull up old information from old cookies even after the tentative rulings have been posted.

This Court's tentative ruling is just that—tentative. Trial courts are not bound by their tentative rulings, which are superseded by the final order. (See *Faulkinbury v. Boyd & Associates, Inc.* (2010) 185 Cal.App.4th 1363, 1374-1375.) The tentative ruling allows a party to focus his or her arguments at a subsequent hearing and to attempt to convince the Court the tentative should or should not become the Court's final order. (*Cowan v. Krayzman* (2011) 196 Cal.App.4th 907, 917.) If you wish to challenge a tentative ruling, please refer to a specific portion of the tentative ruling to which you disagree.

LINE #	CASE #	CASE TITLE	TENTATIVE RULING
LINE 1	24CV440808	Edgar Daniel Alvarez; Karla Bautista v. Junior Gomez; Timothy McGee; Armando Ramirez; Sergio Ramirez; Sedgwick Claims Management Services, Inc.; Target Corporation	Motion of Defendant Target Corporation to Compel Plaintiffs to Provide Further Responses to Special Interrogatories, Set Two, and Request to Production of Documents, Sets Three, and for Monetary Sanctions. OFF CALENDAR.
LINE 2	24CV444353	Stacy Kimball; Tammy Silva v. Kim Huynh	Motion of Defendant Kim Huynh to Compel Plaintiff Tammy Silva to Provide Further Responses to Special Interrogatories, Set Two, and Request to Production of Documents, Set Three, and for Monetary Sanctions. The motion appears to be unopposed. The motion is GRANTED. Plaintiff Tammy Silva is to provide answers to the foregoing discovery requests within 10 days of the filing and service of this order. Objections are deemed WAIVED. Defendant makes a request for monetary sanctions. The request is not code-compliant and is DENIED WITHOUT PREJUDICE to a formal motion requesting sanctions. SEE ATTACHED TENTATIVE RULING. By appearing on a contested tentative ruling, you will be presumed to have read the Bannerhead at the top of this Tentative Ruling Page and the paragraph on “Civility.”

LINE #	CASE #	CASE TITLE	TENTATIVE RULING
LINE 3	25CV461733	Discover Bank v. Luis Marengo	Motion of Defendant Luis Marengo To Quash Service of Summons. The motion is GRANTED. SEE ATTACHED TENTATIVE RULING. By appearing on a contested tentative ruling, you will be presumed to have read the Bannerhead at the top of this Tentative Ruling Page and the paragraph on "Civility."
LINE 4	25CV463973	Svetlana Tassel v. Old Orchard School	Motion of Plaintiff for Reconsideration of Order Granting Motion of Defendant to Quash Service of Subpoena (Code Of Civil Procedure, § 1008). The motion is DENIED. SEE ATTACHED TENTATIVE RULING. By appearing on a contested tentative ruling, you will be presumed to have read the Bannerhead at the top of this Tentative Ruling Page and the paragraph on "Civility."
LINE 5	25CV466751	City of Campbell v. Jeffrey Via	Motion of Petitioner City of Campbell to Seal Records etc. The Petition Is GRANTED in its entirety. Counsel for Petitioner City of Campbell is to prepare an appropriate order for execution by this Court By appearing on a contested tentative ruling, you will be presumed to have read the Bannerhead at the top of this Tentative Ruling Page and the paragraph on "Civility."
LINE 6	25CV469820	Ying Wang v. The John Stuart Co.; HomeFirst Services of Santa Clara County; Betty Ann Gardens Leasing Office; Joanna Flores	Motion of Defendant HomeFirst Services of Santa Clara County to Compel Plaintiff Ying Wang To Provide Further Responses to Form Interrogatories, Set One, and for Monetary Sanctions. The motion of Motion of Defendant HomeFirst Services of Santa Clara County to Compel Plaintiff Ying Wang To Provide Further Response to Form Interrogatories, Set One is GRANTED. Plaintiff is to submit code compliant responses within 20 days of the filing and service of this order. The request of Defendant HomeFirst Services of Santa Clara County monetary sanctions is DENIED WITHOUT PREJUDICE to a special motion for sanctions. SEE ATTACHED TENTATIVE RULING. By appearing on a contested tentative ruling, you will be presumed to have read the Bannerhead at the top of this Tentative Ruling Page and the paragraph on "Civility."

LINE #	CASE #	CASE TITLE	TENTATIVE RULING
LINE 7	25CV469820	Ying Wang v. The John Stuart Co.; HomeFirst Services of Santa Clara County; Betty Ann Gardens Leasing Office; Joanna Flores	Motion of Defendant HomeFirst Services of Santa Clara County to Compel Plaintiff Ying Wang To Provide Further Responses to Special Interrogatories, Set One, Request for Production of Documents, Set One, and for Monetary Sanctions. The motion of Motion of Defendant HomeFirst Services of Santa Clara County to Compel Plaintiff Ying Wang To Provide Further Response to Form Interrogatories, Set One is GRANTED. Plaintiff is to submit code compliant responses within 20 days of the filing and service of this order. The request of Defendant HomeFirst Services of Santa Clara County monetary sanctions is DENIED WITHOUT PREJUDICE to a special motion for sanctions. SEE ATTACHED TENTATIVE RULING. By appearing on a contested tentative ruling, you will be presumed to have read the Bannerhead at the top of this Tentative Ruling Page and the paragraph on "Civility."
LINE 8	25CV477397	Farmers Insurance Exchange v. Nathaniel Villareal	Motion of Plaintiff Farmers Insurance Exchange to Compel Defendant to Respond to Special Stories, Set One, And for Monetary Sanctions. The motion of Motion of Defendant Farmers Insurance Exchange to Compel Plaintiff Nathaniel Villareal To Provide answers to Special Form Interrogatories, Set One is GRANTED. Objections are waived. Plaintiff is to submit code compliant responses within 20 days of the filing and service of this order. The request of Defendant Farmers Insurance Exchange for monetary sanctions is DENIED WITHOUT PREJUDICE to a special motion for sanctions. SEE ATTACHED TENTATIVE RULING. By appearing on a contested tentative ruling, you will be presumed to have read the Bannerhead at the top of this Tentative Ruling Page and the paragraph on "Civility."

LINE #	CASE #	CASE TITLE	TENTATIVE RULING
LINE 9	26CV486118	Hassan Abpikar v. Todd A. Roberts, et al.	Defendant Todd A. Roberts' Special Motion To Strike Plaintiff's First Amended Complaint Pursuant To Code of Civil Procedure, § 425.16. Defendant Todd A. Robert's special motion to strike Plaintiff Abpikar's First Amended Complaint pursuant to Code of Civil Procedure, § 425.16 is GRANTED. SEE ATTACHED TENTATIVE RULING. By appearing on a contested tentative ruling, you will be presumed to have read the Bannerhead at the top of this Tentative Ruling Page and the paragraph on "Civility."

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Calendar Line 1

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Calendar Line 2

Superior Court, State Of California
County Of Santa Clara

Department 1

161 North First Street, San Jose, Ca 95113
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<http://www.scscourt.org>

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Judge Socrates Peter Manoukian is covering for Judge Eunice Lee on 30 June and on 02 July 2026

Case No.: 24CV444353

Stacy Kimbel; Tammy Silva v. Kim Huynh

Date: 30 June 2026

9:00 am

Line Number: 01

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Motion of Defendant Kim Huynh to Compel Plaintiff Tammy Silva to Provide Further Responses to Special Interrogatories, Set Two, and Request to Production of Documents, Set Three, and for Monetary Sanctions.

Defendant seeks to compel plaintiff Tammy Silva to provide further responses to special interrogatories, set two and further responses to a request for production of documents, set three. Moving party defendant also seeks monetary sanctions.

Plaintiff Tammy Silva has not filed opposition to the motion.

The motion is GRANTED. Plaintiff Tammy Silva is to provide answers to the foregoing discovery requests within 10 days of the filing and service of this order. Objections are deemed WAIVED.

Defendant makes a request for monetary sanctions. The request is not code-compliant and is DENIED WITHOUT PREJUDICE to a formal motion requesting sanctions.

Code of Civil Procedure, § 2023.040 states, in part: "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought."

A party filing a discovery motion cannot recover sanctions under **Code of Civil Procedure**, §§ 2030.300(d), 2031.310(h), 2031.320(b) and 2033.290(d) where no opposition was filed, because the responding party did not "... unsuccessfully make[] or oppose[]. ." the motions.

In fact, this Court often suspects that a clever responding party might deliberately choose not to file opposition for the above reason.

Since no opposition was filed, the correct citation of authority would have been California **Rules of Court**, **rule 3.1348(a)** which states:

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed."

In the future, counsel would be advised to add the following language in the notice of motion and in the memorandum of points and authorities: "If you wish to oppose the relief requested in this motion, you must timely file

a written reply in compliance with all Court rules. If you fail to do so, the court may treat your failure to respond as a waiver of your right to oppose this motion and may grant the relief requested pursuant to California **Rules of Court**, rule 3.1348(a)."

DATED:

HON. SOCRATES PETER MANOUKIAN
Judge of the Superior Court
County Of Santa Clara

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Calendar Line 3

Superior Court, State Of California
County Of Santa Clara

Department 1

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Judge Socrates Peter Manoukian is covering for Judge Eunice Lee on 30 June and on 02 July 2026

Case No.: 25CV461733
Date: 30 June 2026

9:00 am
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Discover Bank v. Luis Marengo
Line Number: 03

Motion of Defendant Luis Marengo To Quash Service of Summons.

The motion is unopposed.

On 20 July 2025, Defendant Luis Marengo filed a motion to quash service of summons and complaint. He filed a proof of service

On 29 July 2025 and 13 August 2025, Mr. Marengo filed a proof of electronic service of his motion to quash on plaintiff's counsel on 7/29/25.

Plaintiff's opposition to this motion was due on 16 June 2026 factoring the Juneteenth holiday. 6/16/26 (due to court holiday). No opposition has been filed as of 28 June 2026 at 10:29 PM.

Personal jurisdiction over a defendant depends on valid service of process (**Summers v. McClanahan** (2006) 140 Cal.App.4th 403, 413). A defendant may challenge defective service by filing a motion to quash, pursuant to **Code of Civil Procedure**, § 418.10(a)(1). Once the defendant contests service, the burden shifts to the plaintiff to show proper service through competent evidence. (**Dill v. Berquist Construction Co.** (1994) 24 Cal.App.4th 1426, 1439.).

["[W]here a defendant properly moves to quash service of summons the burden is on the plaintiff to prove facts requisite to the effective service." (**Sheard v. Superior Court** (1974) 40 Cal.App.3d 207, 211.)

As Plaintiff has the burden of showing proper service through competent evidence and has not opposed the motion, the motion of Defendant to quash service of process is GRANTED.

Defendant is to send a copy of this order to counsel for Plaintiff.

DATED:

HON. SOCRATES PETER MANOUKIAN
Judge of the Superior Court
County Of Santa Clara

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Calendar Line 4

**Superior Court, State Of California
County Of Santa Clara
Department 1**

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(For Clerk's Use Only)

Judge Socrates Peter Manoukian is covering for Judge Eunice Lee on 30 June and on 02 July 2026

**Case No.: 25CV463973
Date: 30 June 2026**

9:00 am

**Svetlana Tassel v. Old Orchard School
Line Number: 04**

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**Motion Of Plaintiff To Reconsider This Court's Order
After The 02 December 2025 Hearing
Granting Motion Of The Defendant To Quash Service Of Summons
(Code of Civil Procedure, § 1008.)**

On 02 December 2025, this Court adopted a tentative ruling granting Defendant Old Orchard School's motion to quash service of summons and complaint. The minute order indicates Plaintiff was present in Court, but the Court denied plaintiff's "untimely request to contest tentative ruling."

Thereafter, on 02 December 2025, Plaintiff filed the present motion for reconsideration and motion to vacate void accompanied by proof of electronic service on Defendant's counsel on 02 December 2025

Defendant's Opposition was due on 16 June 2026 due to the Juneteenth holiday. No opposition has been filed as of 28 June 2026 at 11:03 PM.

This Court notes that on 11 May 2026, Counsel for Defendant Old Orchard School filed a Case Management Statement indicating that the defendant had not been served.

Plaintiff's motion argues, essentially, that this Court's tentative ruling on her 02 December 2025 motion to quash was not posted on the Court's website and she was denied due process in not being allowed to present oral argument.

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order. . . . (Code of Civil Procedure, § 1008(a).)

To move for reconsideration of a prior court order on the basis of "new or different facts" or newly discovered evidence, the moving party must provide to this Court a satisfactory explanation for the failure to produce that evidence at an earlier time. (*Shiffer v. CBS Corp.* (2015) 240 Cal.App.4th 246, 255.)

The legislative intent of this requirement was to limit motions for reconsideration to circumstances where a party offers the court some fact or circumstance not previously considered and some valid reason for not offering it earlier. (See *Gilberd v. AC Transit* (1995) 32 Cal.App.4th 1494, 1500.) The moving party must present a satisfactory explanation for failing to provide the evidence earlier, which can only be described as a strict requirement of diligence. (See *Garcia v. Hejmadi* (1997) 58 Cal.App.4th 674, 690.)

Plaintiff's failure to follow the Court rules concerning notification to the Court and to opposing counsel of a desire to appear and contest the posted tentative ruling does not constitute "new or different facts, circumstances, or law." For that matter, it neither renders the order "void."

Additionally, "[t]he judge is not required to listen to oral arguments on a motion, but has discretion to decide the matter solely on the basis of supporting affidavits." (*Ensher, Alexander & Barsoom v. Ensher* (1964) 225 Cal.App.2d 318, 325; see also *Wilburn v. Oakland Hospital* (1989) 213 Cal.App.3d 1107, 1111; see *Eddy v. Temkin* (1985) 167 Cal.App.3d 1115.)

The motion of Plaintiff for reconsideration and to vacate a "void order" is DENIED.

This case is also set for a Case Management Conference at 10:00 AM in this Department. The Court will hear counsel on the CMC immediately after the hearing on this motion.

DATED:

HON. SOCRATES PETER MANOUKIAN
Judge of the Superior Court
County Of Santa Clara

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Calendar Line 5

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Calendar Line 6

**Superior Court, State Of California
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Judge Socrates Peter Manoukian is covering for Judge Eunice Lee on 30 June and on 02 July 2026

**Case No.: 25CV469820
Date: 30 June 2026**

**Ying Wang v. HomeFirst Services of Santa Clara County; et al.
9:00 am
Line Number: 06**

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**Motion of Defendant HomeFirst Services of Santa Clara County
to Compel Plaintiff Ying Wang To Provide Further Response
to Form Interrogatories, Set One, and for Monetary Sanctions.
(Code of Civil Procedure, § 2030.290(c).)**

I. Statement Of Facts.

In this motion, Defendant HomeFirst Services of Santa Clara County seeks an order from this Court compelling Plaintiff Ying Wang to provide further responses to Form Interrogatory 17.1, set one, and for monetary sanctions in the amount of \$1185.00.

Plaintiff filed this lawsuit on or about 07 July 2025 against Defendants The John Stewart Company, Betty Ann Gardens Leasing Office, Joanna Flores, and HomeFirst Services of Santa Clara County alleging multiple statutory and common law violations against HomeFirst and co-defendants The John Stewart Company, Betty Ann Gardens Leasing Office, and Joanna Flores.

Plaintiff asserts causes of action sounding in negligence, discrimination, retaliation, constructive eviction, breach of statutory housing duties, and intentional infliction of emotional distress, among others.

This Defendant properly served the foregoing discovery. On or about 07 September 2025, Plaintiff provided responses to Form Interrogatories, Set One and Requests for Admission, Set One. Defendant and was unsatisfied with her response to Form Interrogatory 17.1. According to the Declaration of Umid Bobajanov, appropriate "Meet & Confer" took place but the matter was still unresolved. This Defendant claims that the responses to Form Interrogatory No. 17.1 are evasive and incomplete.

This motion was filed on 30 September 2025. The filing of this motion complies with the timing requirements of **Code of Civil Procedure**, § 2030.300(c).

Plaintiff has not filed opposition to this motion.

In response to a discovery motion filed by codefendant The John Stewart Company and Joanna Flores who compelled responses to special interrogatories, Plaintiff filed a motion for a protective order which was heard by Judge Lee on 25 June 2026.

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173.)

II. Discussion.

A. Motion to Compel Further Responses.

Code of Civil Procedure, § 2030.300(a) states:

“(a) On receipt of a response to interrogatories, the propounding party may move for an order compelling a further response if the propounding party deems that any of the following apply:

(1) An answer to a particular interrogatory is evasive or incomplete.

(2) An exercise of the option to produce documents under [Section 2030.230](#) is unwarranted or the required specification of those documents is inadequate.

(3) An objection to an interrogatory is without merit or too general.”

Moving Party has made a prima facie case showing that it seeks further responses to Form Interrogatory 17.1. Without proper opposition, this Court cannot come to any other conclusion.

B. Monetary Sanctions.

Defendant makes a request for monetary sanctions. The request is not code-compliant.

Code of Civil Procedure, § 2023.040 states, in part: “A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.”

A party filing a discovery motion cannot recover sanctions under **Code of Civil Procedure**, §§ 2030.300(d), 2031.310(h), 2031.320(b) and 2033.290(d) where no opposition was filed, because the responding party did not “. . . unsuccessfully make[] or oppose[]. . .” the motions.

In fact, this Court often suspects that a clever responding party might deliberately choose not to file opposition for the above reason.

Since no opposition was filed, the correct citation of authority would have been California **Rules of Court**, **rule** 3.1348(a) which states:

“The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.”

In the future, counsel would be advised to add the following language in the notice of motion and in the memorandum of points and authorities: “If you wish to oppose the relief requested in this motion, you must timely file a written reply in compliance with all Court rules. If you fail to do so, the court may treat your failure to respond as a waiver of your right to oppose this motion and may grant the relief requested pursuant to California **Rules of Court**, rule 3.1348(a).”

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III. Conclusion and Order.

The motion of Motion of Defendant HomeFirst Services of Santa Clara County to Compel Plaintiff Ying Wang To Provide Further Response to Form Interrogatories, Set One is GRANTED. Plaintiff is to submit code compliant responses within 20 days of the filing and service of this order.

The request of Defendant HomeFirst Services of Santa Clara County monetary sanctions is DENIED WITHOUT PREJUDICE to a special motion for sanctions.

DATED:

HON. SOCRATES PETER MANOUKIAN

*Judge of the Superior Court
County Of Santa Clara*

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Calendar Line 7

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Calendar Line 8

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Judge Socrates Peter Manoukian is covering for Judge Eunice Lee on 30 June and on 02 July 2026

Case No.: 25CV469820
Date: 30 June 2026

Nathaniel Villareal v. Farmers Insurance Exchange
9:00 am
Line Number: 06

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Motion of Defendant Farmers Insurance Exchange
to Compel Plaintiff Nathaniel Villareal to Respond to
Special Interrogatories, Set One, and for Monetary Sanctions.

Defendant did not file opposition to this motion.

I. **Statement of Facts.**

This underinsured motorist case stems from a 12 September 2022, motor-vehicle incident that occurred in Santa Clara County between the plaintiff Nathaniel Villarreal and Omar Gonzalez.

The Court has carefully reviewed the moving papers in support of the moving papers.

II. **Discussion.**

In this case, Defendants propounded Special Interrogatories upon Plaintiff to learn more about the nature and extent of plaintiff's claims in this action, which information is relevant to this uninsured motorist action.

California courts have taken a liberal approach to permissible discovery, which has led the courts to resolve any doubt in favor of permitting discovery. (*Pacific Tel. & Tel. Co. v. Superior Court* (1970) 2 Cal.3d 161, 173.)

A. **Motion to Compel Responses to interrogatories.**

California **Code of Civil Procedure**, § 2017.010 provides that a party may obtain discovery regarding matters relevant to the pending action. "A defendant may propound interrogatories to a party to the action without leave of court at any time." (**Code of Civil Procedure**, § 2030.020(a).)

If a party fails to respond to discovery, the propounding party's remedy is to seek a court order compelling answers to the interrogatories. (**Code of Civil Procedure**, § 2030.290(b).)

This Court finds that Defendant has shown that the set of interrogatories The moving party is required to show that the set of special interrogatories was properly, the time to respond has expired, and no response of any kind was served. (*Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-06.)

Defendant is not required to attempt to resolve a discovery dispute informally, where no response was served within the statutory time limit. (**Leach v. Superior Court**, supra, 111 Cal.App.3d at p. 906.)

B. Request of Defendant for Monetary Sanctions.

Defendant makes a request for monetary sanctions. The request is not code-compliant.

Code of Civil Procedure, § 2023.040 states, in part: "A request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought."

A party filing a discovery motion cannot recover sanctions under **Code of Civil Procedure**, §§ 2030.300(d), 2031.310(h), 2031.320(b) and 2033.290(d) where no opposition was filed, because the responding party did not "... unsuccessfully make[] or oppose[]. ." the motions.

In fact, this Court often suspects that a clever responding party might deliberately choose not to file opposition for the above reason.

Since no opposition was filed, the correct citation of authority would have been California **Rules of Court**, **rule 3.1348(a)** which states:

"The court may award sanctions under the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed."

In the future, counsel would be advised to add the following language in the notice of motion and in the memorandum of points and authorities: "If you wish to oppose the relief requested in this motion, you must timely file a written reply in compliance with all Court rules. If you fail to do so, the court may treat your failure to respond as a waiver of your right to oppose this motion and may grant the relief requested pursuant to California **Rules of Court**, rule 3.1348(a)."

III. Conclusion and Order.

The motion of Motion of Defendant Farmers Insurance Exchange to Compel Plaintiff Nathaniel Villareal To Provide answers to Special Form Interrogatories, Set One is GRANTED. Objections are waived. Plaintiff is to submit code compliant responses within 20 days of the filing and service of this order.

The request of Defendant Farmers Insurance Exchange for monetary sanctions is DENIED WITHOUT PREJUDICE to a special motion for sanctions.

DATED:

HON. SOCRATES PETER MANOUKIAN
Judge of the Superior Court
County Of Santa Clara

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Calendar Line 9

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

DEPARTMENT 20

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(For Clerk's Use Only)

CASE NO.: 26CV486118

Hassan Abpikar v. Todd A. Roberts, et al.

DATE: 30 June 2026

TIME: 9:00 am

LINE NUMBER: 9

This matter will be heard by the Honorable Judge Socrates Peter Manoukian in Department 20 in the Old Courthouse, 2nd Floor, 161 North First Street, San Jose. Any party opposing the tentative ruling must call Department 20 at 408.808.6856 and the opposing party no later than 4:00 PM on 29 June 2026. Please specify the issue to be contested when calling the Court and Counsel.

**Order On Defendant Todd A. Roberts' Special Motion To Strike Plaintiff's
First Amended Complaint Pursuant To *Code of Civil Procedure*, § 425.16.**

I. Statement of Facts.

On 29 April 2024, plaintiff Hassan Abpikar ("Abpikar") and Albert Nichols ("Nichols") jointly filed, as self-represented litigants, a complaint in Santa Clara County Superior Court, case number 24CV436896, against State Farm Insurance ("State Farm"), among others, for non-payment of insurance claim ("Underlying Action"). (First Amended Complaint ("FAC"), ¶19.) Nichols is a layperson with no legal training. (FAC, ¶20.)

On 3 July 2024, defendant Todd A. Roberts ("Roberts"), attorney for State Farm in the Underlying Action, directly contacted Nichols, Abpikar's co-plaintiff in the Underlying Action. (FAC, ¶¶4 and 21.) Roberts failed to advise Nichols that Roberts represented an adverse party; Nichols had no obligation to speak; the purpose of the call was to elicit statements for use in litigation; and that any statements could be used against Nichols and Abpikar. (FAC, ¶22.)

Roberts engaged in intimidation and manipulation stating to Nichols words to the effect of: "What are you doing with this guy Hassan Abpikar? How do you know him? Do you know he is a criminal? Do you know that he has a con artistry conviction? Did you know that he has a fraud conviction, and he has pattern of presenting fraudulent claims? Do you know he is under investigation and he will probably end up in jail? Did you know he uses 'young girls' to sell cars for him, because young girls are trustworthy? What is your 20 year old young daughter Elidia Jade Nichols doing with this old man? Keep your young daughter away from him. We are going to deny your state farm claim. Can you give me your email so I can send his criminal records and convictions, so you can see it for yourself that is the truth?" (FAC, ¶¶23 see also 25 - 26 and 29.) On 3 July 2024, Roberts emailed Nichols a copy of Abpikar's purported criminal history but nowhere does it state that Abpikar has a fraud or con artistry conviction or a pattern of fraudulent claims. (FAC, ¶¶31 and 38 and Exh. A)

Roberts's statements to Nichols were all knowingly false or made with reckless disregard for the truth. (FAC, ¶¶24, 26 and 29.) Abpikar has no criminal history involving fraud or con artistry and has never made a fraudulent claim before any insurance company or any other entity. (*Id.*) Abpikar has never used or abused young or old [girls] and has never had any domestic issue involving young or old girls. (*Id.*) Roberts's statements to Nichols were

intended to and did cause Nichols to distrust Abpikar. (FAC, ¶¶27 and 32.) Roberts's statements and actions caused Abpikar and Nichols to voluntarily dismiss the Underlying Action despite having legitimate claims. (FAC, ¶¶33 - 34.)

On or about 30 September 2024, Nichols notified Abpikar of the phone conversation and email from Roberts, but Nichols did not explain the details of the call nor forward the email from Roberts to Abpikar. (FAC, ¶39.) It was not until 19 January 2026 when Abpikar met with Nichols and Nichols's daughter that Abpikar first learned of the details of the phone conversation between Nichols and Roberts and the false statements made by Roberts. (FAC, ¶¶40 - 41.) On 30 January 2026, Nichols forwarded, for the first time, the 3 January 2024 email from Roberts to Abpikar. (FAC, ¶41.)

On 9 February 2026, plaintiff Abpikar, as a self-represented litigant¹, filed the instant action against defendant Roberts. On 19 February 2026, plaintiff Abpikar filed the now operative FAC against defendant Roberts and adding defendant State Farm. The FAC asserts causes of action for:

- (1) Abuse of Process [against defendant Roberts]
- (2) Intentional Interference with Prospective Economic Advantage [against defendant Roberts]
- (3) Intentional Misrepresentation [against defendant Roberts]
- (4) Defamation/ Slander [against defendant Roberts]
- (5) Unfair Competition (Bus. & Prof. Code § 17200)
- (6) Intentional Infliction of Emotional Distress [against defendant Roberts]
- (7) Negligent Infliction of Emotional Distress [against defendant Roberts]
- (8) Civil Conspiracy
- (9) Vicarious Liability/ Respondeat Superior [against defendant State Farm]

On 30 March 2026, defendant Roberts filed an answer to plaintiff Abpikar's FAC.

On 20 April 2026, defendant Roberts filed the motion now before the court, a special motion to strike plaintiff Abpikar's FAC pursuant to Code of Civil Procedure section 425.16.

II. Analysis.

A. Defendant Roberts's special motion to strike portions of the complaint pursuant to Code of Civil Procedure section 425.16.

In *Equilon Enterprises, LLC v. Consumer Cause, Inc.* (2002) 29 Cal.4th 53, the California Supreme Court established the trial court's duty in ruling on an anti-SLAPP motion to strike:

Section 425.16, subdivision (b)(1) requires the court to engage in a two-step process. First, the court decides whether the defendant has made a threshold showing that the challenged cause of action is one arising from protected activity. The moving defendant's burden is to demonstrate

¹ Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. "[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]" (*Stein v. Hassen* (1973) 34 Cal.App.3d 294, 303.) "A litigant has a right to act as his own attorney [citation] 'but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.'" (*Lombardi v. Citizens Nat'l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209.)

that the act or acts of which the plaintiff complains were taken ‘in furtherance of the [defendant]’s right of petition or free speech under the United States or California Constitution in connection with a public issue,’ as defined in the statute. [Citation.] If the court finds [that defendant has made its threshold showing], it then determines whether the plaintiff has demonstrated a probability of prevailing on the claim. Under section 425.16, subdivision (b)(2), the trial court in making these determinations considers ‘the pleadings, and supporting and opposing affidavits stating the facts upon which the liability or defense is based.’

(*Id.* at 67.)

“[I]n order to establish the requisite probability of prevailing [citation], the plaintiff need only have ‘stated and substantiated a legally sufficient claim.’” (*Navellier v. Sletten* (2002) 29 Cal. 4th 82, 88, quoting *Briggs v. Eden Council for Hope & Opportunity* (1999) 19 Cal. 4th 1106, 1123.) “Put another way, the plaintiff ‘must demonstrate that the complaint is both legally sufficient and supported by a sufficient prima facie showing of facts to sustain a favorable judgment if the evidence submitted by the plaintiff is credited.’” (*Id.* at 88-89, quoting (Superseded by statute, as stated in *Hart v. Darwish*, 12 Cal.App.5th 218) *Wilson v. Parker, Covert & Chidester* (2002) 28 Cal.4th 811, 821.)

“Only a cause of action that satisfies both prongs of the anti-SLAPP statute—i.e., that arises from protected speech or petitioning and lacks even minimal merit—is a SLAPP, subject to being stricken under the statute.” (*Id.* at 89; see also *Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1061 (stating that “[i]f the defendant carries its burden, the plaintiff must then demonstrate its claims have at least ‘minimal merit’”); see also *Kinsella v. Kinsella* (2020) 45 Cal.App.5th 442, 457 (stating that “[t]o demonstrate the ‘requisite minimal merit,’ [the plaintiff must establish a prima facie factual showing]”); see also *Monster Energy Co. v. Schechter* (2019) 7 Cal.5th 781, 793 (stating that “a plaintiff’s burden at the second anti-SLAPP step is a low one, requiring only a showing that a cause of action has at least ‘minimal merit within the meaning of the anti-SLAPP statute’”).)

“In deciding the question of potential merit, the trial court considers the pleadings and evidentiary submissions of both the plaintiff and the defendant (§ 425.16, subd. (b)(2)); though the court does not weigh the credibility or comparative probative strength of competing evidence, it should grant the motion if, as a matter of law, the defendant’s evidence supporting the motion defeats the plaintiff’s attempt to establish evidentiary support for the claim.” (Superseded by statute, as stated in *Hart v. Darwish*, 12 Cal. App. 5th 218), *Wilson v. Parker, Covert & Chidester*, supra, 28 Cal.4th at p. 821 ; see also *Integrated Healthcare Holdings, Inc. v. Fitzgibbons* (2006) 140 Cal.App.4th 515, 530 (stating that a plaintiff or cross-complainant in “a SLAPP motion [is allowed] a certain degree of leeway in establishing a probability of prevailing on its claims due to ‘the early stage at which the motion is brought and heard [citation] and the limited opportunity to conduct discovery’”); see also *Monster Energy Co.*, supra, 7 Cal.5th at p.795 (stating that “at the second anti-SLAPP step, a court ‘does not weigh the credibility or comparative probative strength of competing evidence... [i]t ‘accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law... [w]e resolve conflicts and inferences in the record in favor of plaintiff’”).)

1. Defendant Roberts establishes that plaintiff Abpikar’s FAC arises from protected activity.

Defendant Roberts argues the entirety of plaintiff Abpikar’s FAC arises from allegations of communications between Roberts and Nichols, made in his capacity as an attorney for a defendant (State Farm) in the Underlying Action, during the course of litigating the Underlying Action, and concerning the Underlying Action which fall within the ambit of section 425.16. “A defendant meets the burden of showing that a plaintiff’s action arises from a protected activity by showing that the acts underlying the plaintiff’s cause of action fall within one of the four categories of conduct described in section 425.16, subdivision (e). [Citation.]

Those four categories are: ‘(1) **any written or oral statement or writing made before a legislative, executive, or judicial proceeding**, or any other official proceeding authorized by law; (2) **any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body**, or any other official proceeding authorized by law; (3) any written or oral statement made

in a place open to the public or a public forum in connection with an issue of public interest; (4) or any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.” (*Siam v. Kizilbash* (2005) 130 Cal.App.4th 1563, 1569; emphasis added.)

Here, plaintiff Abpikar’s FAC is explicitly premised upon “the E-mails sent on July 3, 2024 by [defendant Roberts] [an Attorney at Law] to Albert Nichols who is ... Co-Plaintiff [in the Underlying Action], and Details of the Phone call made by [defendant Roberts] on July 3, 2024 who directly contacted Albert Nichols 30 (thirty) days AFTER being served with the summons and Complaint [in the Underlying Action].” (See page 2 of the FAC; see also FAC, ¶9, ¶18—“Defendants ... engaged in a deliberate course of conduct designed to intimidate, discredit, isolate, and undermine Plaintiff **in connection with pending litigation**,” ¶¶21 – 23 and 33 – 34— “Attorney Roberts [sic] actions were designed to induce Abpikar to abandon his legal claims, which ultimately resulted in Abpikar and Co-Plaintiff Albert [Nichols] voluntarily dismissing their lawsuit (the Underlying Action).”)

It is well established that the protection of the anti-SLAPP statute extends to lawyers and law firms engaged in litigation-related activity. As our Supreme Court explained, “Any act” under section 425.16, subdivision (b)(1) “includes communicative conduct such as the filing, funding, and prosecution of a civil action. [Citation.] This includes qualifying acts committed by attorneys in representing clients in litigation.” (*Rusheen v. Cohen*, *supra*, 37 Cal.4th at p. 1056.)

In fact, courts have adopted “a fairly expansive view of what constitutes litigation-related activities within the scope of section 425.16.” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 908 [120 Cal. Rptr. 2d 576].) “Under the plain language of section 425.16, subdivision (e)(1) and (2), as well as the case law interpreting those provisions, **all communicative acts performed by attorneys as part of their representation of a client in a judicial proceeding or other petitioning context are per se protected as petitioning activity by the anti-SLAPP statute.**” (*Finton Construction, Inc. v. Bidna & Keys, APLC* (2015) 238 Cal.App.4th 200, 210 (italics added.) Cases construing the anti-SLAPP statute hold that “a statement is ‘in connection with’ litigation under section 425.16, subdivision (e)(2) if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation.” (*Neville v. Chudacoff* (2008) 160 Cal.App.4th 1255, 1266.) Hello yeah I [73 Cal. Rptr. 3d 383].)

(*Optional Capital, Inc. v. Akin Gump Strauss, Hauer & Feld LLP* (2017) 18 Cal.App.5th 95, 113-114; emphasis added.)

In opposition, plaintiff Abpikar stresses the communications upon which the FAC is premised are false, but offers no relevant legal authority to overcome defendant Roberts’s argument that the communications were made by an attorney as part of his representation of a client in a pending judicial proceeding and, as such, are *per se* protected as petitioning activity by the anti-SLAPP statute. In short, plaintiff Abpikar’s arguments address the second step in the analysis of an anti-SLAPP motion, i.e., probability of prevailing. Plaintiff Abpikar’s attempt to distinguish *Finton*, *supra*, 238 Cal.App.4th at p. 200 is unavailing.

The court finds all the claims asserted by plaintiff Abpikar in the FAC arise from protected activity. As defendant Roberts has made a threshold showing that the challenged allegations arise from protected activity, the court must then determine whether plaintiff Abpikar has demonstrated a probability of prevailing.

2. Plaintiff Abpikar fails to demonstrate that he has a probability of prevailing.

Defendant Roberts asserts plaintiff Abpikar cannot demonstrate a probability of prevailing because Civil Code section 47, subdivision (b) bars all of plaintiff Abpikar’s claims asserted in the FAC.

The litigation privilege, as pertinent here, states: “A privileged publication or broadcast is one made: [¶] ... [¶] (b) In any ... (2) judicial proceeding” (Civ. Code, § 47, subd. (b).) “The principal purpose of [Civil Code] section 47[, subdivision (b).], is to afford litigants ... the utmost freedom of access to the courts without fear of being harassed subsequently by derivative tort actions. [Citations.]” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 213 [266 Cal. Rptr. 638, 786 P.2d 365].)

The privilege also “promotes the effectiveness of judicial proceedings by encouraging attorneys to zealously protect their clients' interests.” (*Id.* at p. 214.)

“Although originally enacted with reference to defamation [citation], the privilege is now held applicable to any communication, whether or not it amounts to a publication [citations], and all torts except malicious prosecution. [Citations.] Further, it applies to any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the litigation [Citations.]” (*Silberg v. Anderson*, *supra*, 50 Cal.3d at p. 212.) “The breadth of the litigation privilege cannot be understated. It immunizes defendants from virtually any tort liability (including claims for fraud), with the sole exception of causes of action for malicious prosecution. [Citation.]” (*Olsen v. Harbison* (2010) 191 Cal.App.4th 325, 333 [119 Cal. Rptr. 3d 460].) “Any doubt about whether the privilege applies is resolved in favor of applying it. [Citation.]” (*Kashian v. Harriman* (2002) 98 Cal.App.4th 892, 913 [120 Cal. Rptr. 2d 576].)

... “*Silberg* leaves no room for doubt: For policy reasons, even an act committed fraudulently or with malice is privileged under section 47, subdivision (b).” [Citation.]” (*Ibid.*)

... Without the litigation privilege, attorneys would simply be unable to do their jobs properly.

(*Finton*, *supra*, 238 Cal.App.4th at pp. 211-212.)

The litigation privilege “applies to any publication required or permitted by law in the course of a judicial proceeding to achieve the objects of the litigation, **even though the publication is made outside the courtroom** and no function of the court or its officers is involved.” (*Silberg v. Anderson* (1990) 50 Cal.3d 205, 212.)

Since all of the claims asserted in plaintiff Abpikar's FAC are premised on communications that were made in the course of judicial proceedings by litigants [counsel] to achieve the objects of the litigation that have some connection or logical relation to this action, they are protected by the litigation privilege. (See *Rusheen*, *supra*, 37 Cal.4th at p.1057; see also *Rohde v. Wolf* (2007) 154 Cal.App.4th 28, 38 (stating that “[t]he privilege in section 47 is ‘relevant to the second step in the anti-SLAPP analysis in that it may present a substantive defense plaintiff must overcome to demonstrate a probability of prevailing’ ... [because the statements] were privileged under section 47... Plaintiff cannot meet her burden under the second step in applying the anti-SLAPP statute of demonstrating a probability of prevailing”); see also *JSJ Limited Partnership v. Mehrban* (2012) 205 Cal.App.4th 1512, 1522 (stating same); see also *Kenne v. Stennis* (2014) 230 Cal.App.4th 953, 965 (stating that “Civil Code section 47, subdivision (b) protects any statements or writings that have ‘some relation’ to a lawsuit”).)

In opposition, plaintiff Abpikar contends the litigation privilege does not extend to the knowingly false criminal accusations made by defendant Roberts in his communications with Nichols. Even if the court were to accept plaintiff Abpikar's evidence in that regard, the litigation privilege is broad. As noted above, “It immunizes defendants from virtually any tort liability (including claims for fraud), with the sole exception of causes of action for malicious prosecution. Any doubt about whether the privilege applies is resolved in favor of applying it. ... For policy reasons, even an act committed fraudulently or with malice is privileged under section 47, subdivision (b).” (*Finton*, *supra*, 238 Cal.App.4th at pp. 211-212.)

For the reasons discussed, defendant Robert's special motion to strike plaintiff Abpikar's FAC is GRANTED.

3. Plaintiff Abpikar's requests for affirmative relief are DENIED.

In his opposition, plaintiff Abpikar makes multiple requests for affirmative relief including (1) an order allowing plaintiff Abpikar to conduct discovery; and (2) an order requiring defendant Roberts to preserve and produce a purported recording of the 3 July 2024 conversation between defendant Roberts and Nichols.

Plaintiff Abpikar's requests for affirmative relief are DENIED. (See Code Civ. Proc., §425.16, subd. (g)—“The court, **on noticed motion** and for good cause shown, may order that specified discovery be conducted notwithstanding [the stay of discovery upon filing of an anti-SLAPP motion].” See also Code Civ. Proc., §§2031.010 et seq.—procedures for demanding inspection of documents and electronically stored information, protective orders, and compelling compliance thereof.)

Plaintiff Abpikar also requests leave to amend in the event the court grants defendant Roberts's special motion to strike. "Allowing a SLAPP plaintiff leave to amend the complaint once the court finds the prima facie showing has been met would completely undermine the statute [and] would totally frustrate the Legislature's objective of providing a quick and inexpensive method of unmasking and dismissing such suits." (Labeled as at risk, relies on an overruled prior decision (*Church of Scientology v. Wollersheim*, 42 Cal.App.4th 628) *Simmons v. Allstate Ins. Co.* (2001) 92 Cal.App.4th 1068, 1073-1074; see also *Mobile Medical Services, etc. v. Rajaram* (2015) 241 Cal.App.4th 164, 171—"Once the trial court has determined the speech at issue is constitutionally protected, it may not grant leave to amend to omit facts to take the claim out of the protection of section 425.16.")

Consequently, plaintiff Abpikar's request for leave to amend is DENIED.

III. Order.

Defendant Robert's special motion to strike plaintiff Abpikar's First Amended Complaint pursuant to **Code of Civil Procedure**, § 425.16 is GRANTED.

DATED:

HON. SOCRATES PETER MANOUKIAN
Judge of the Superior Court
County of Santa Clara

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